



File No.: EXP202213389

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 26, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FUNDACIÓN GOODJOB (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202213389 (PS/00529/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 27, 2022. The complaint is directed against FUNDACIÓN GOODJOB with NIF G87193330 (hereinafter, GOODJOB). The reasons on which the complaint is based are as follows: In October 2021, the complainant joined an employability program for people with disabilities from the Fundación GOODJOB. Before joining the program, they were asked for various documents related to their degree of disability (resolution on the degree of disability issued by their Base Center of the Community of Madrid, and the certificate of degree of disability).

According to the complainant, the request for such documentation, to prove their status as a person with a disability or to assess their capabilities, is neither necessary nor lawful. In this regard, it means that such documents contain information about clinical diagnoses.

Since they were not selected for the employability program, they requested the deletion of their data. For this purpose, they sent an email on September 25, 2022, to the address listed in the privacy policy of the respondent. This request has not been addressed by the respondent.

Along with the complaint, they provide the email sent by the respondent on October 8, 2021, in which the documents that needed to be submitted to enroll in the program are listed, the response sent by the complainant to address that request, and the email sent on September 25, 2022, to exercise the right to deletion.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to GOODJOB, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on December 27, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on January 9, 2023. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

On January 25, 2023, a written response was received by this Agency, the content of which is summarized in the previous investigative actions, reproduced later in this document.

THIRD: On January 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

From the complaint filed by the complainant and the accompanying documentation, as well as the response to the forwarding and the accompanying documentation, the following aspects are observed:

- In October 2021, the complainant joined an employability program for people with disabilities from the respondent.

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- For its incorporation into said program, the respondent required the claimant to present certain documentation containing information on clinical diagnoses. The claimant considers this excessive.
- On 09/25/22, the claimant sent an email to the address listed in the privacy policy of the respondent requesting the deletion of their data, as they had not been selected for the employability program, stating that this request has not been addressed by the respondent.
- In its response to the transfer, the respondent acknowledges receipt of the email requesting the deletion of the claimant's data, alleging that for the processing of the deletion request, it requested a copy of the claimant's ID to verify their identity, to which the claimant had not responded to the request for the copy of the ID that had been made (It provides a copy of the email that it supposedly sent to the claimant requesting the provision of their ID to verify their identity). Indicating that it was the claimant who voluntarily withdrew from the employability program on 11/12/2021. And that, after receiving the request to exercise the right to deletion from the claimant, it was internally noted that the claimant had participated in its Employability Program IMPACT #include4. And that the data was in a state of blocking in accordance with Article 32 of the LOPDGDD.

In this regard, it should be noted that the claimant sent their request for data deletion from the email A.A.A. [***EMAIL.1] to the email info@fundaciongoodjob.org, while the document provided by the respondent shows as the email from which the request for the ID to verify their identity was made "Human Resources " appearing in the "to" field of the email ***EMAIL.1. And as Subject: Fwd: DELETION OF PERSONAL DATA. And whose content is as follows: "Good morning, A.A.A.. We acknowledge receipt of your email. To proceed with your request, we need you to send us this request. Best regards, and thank you very much. Human Resources Department rrhh@goodjob.es | (...)

- The respondent states that it proceeded to apply the definitive deletion of all those data of the Claimant that met the requirements for it.
- Without any reference in the response document to whether the various documentation required from applicants before joining an employability program for people with disabilities, which involves the processing of special categories of data, is necessary or excessive for the purpose to which it is intended.

Therefore, the investigative actions have been aimed at evidencing whether the request for various documentation regarding the degree of disability of the applicants before joining an employability program for people with disabilities of the Goodjob Foundation, which involves the processing of special categories of data, is necessary or not for the purpose to which it is intended: "Management of the employability programs offered by the Organization."

On 04/04/2023, information requests were made to the respondent.

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On 04/18/2023, the responding party submitted a written response to the information request made, in which it states among other points:

- “By virtue of the provisions established by Article 30 of the GDPR, the GOODJOB FOUNDATION has a record, in writing and in electronic format (in an Excel document), of the processing activities it carries out under its responsibility. In this regard, the aforementioned record of processing activities is provided as Annex I to this document and, in a separate file, the said record of processing activities.
- In the case at hand, the activity in which the personal data of the Claimant was processed is the so-called “EMPLOYABILITY PROGRAMS.”
- It is necessary at this point to recall that the main activity of the GOODJOB FOUNDATION has a social character; specifically, what this non-profit organization aims to achieve is to promote vocational training for employment and lifelong learning to achieve the labor and social integration of groups at risk of poverty and/or social exclusion, among which are included, among others, people with functional diversity and/or any type of disability.
- In the case at hand, the “IMPACT #include4 employability program,” in which the Claimant participated, consisted of training people with disabilities in cybersecurity to develop skills in the cybersecurity sector.
- The ultimate goal of these employability programs is for participants, once they have completed the training process, to be introduced into the labor market.
- Moving on to describe the pathway to achieve the aforementioned objective:

Participants always voluntarily decide to be part of the employability programs, holding within the GOODJOB FOUNDATION the role of student without this entailing any economic cost for them. At the same time, the GOODJOB FOUNDATION enters into collaboration agreements with ordinary companies, which adhere to a specific program and commit to eventually hiring at least one participant from the program as an employee.

Once the training phase of the employability program is completed, if a collaborating company is interested in hiring participants, it enters into a labor enclave with one of the Special Employment Centers of social initiative of GOODJOB; in this way, the participant becomes employed with the role of employee by one of the Special Employment Centers of social initiative of GOODJOB for one year, and subsequently, becomes a permanent employee at the ordinary company that signed the labor enclave.

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After stating that the “IMPACT #include4 employability program” does indeed involve special category data, specifically data related to the disability of the participants, which is considered health data; it proceeds to justify the legal basis for the processing of this data in the following terms:

In carrying out the processing of this type of data by the GOODJOB FOUNDATION, it is necessary to overcome the prohibition on processing special category data with the concurrence of one of the circumstances set out in Article 9.2 of the GDPR. In this case, the processing of data regarding disability carried out by the GOODJOB FOUNDATION finds its legitimacy in paragraph a) of the aforementioned provision.

After lifting the previous prohibition, some of the legal bases provided for in Article 6.1 of the GDPR apply; for this specific case, the one provided for in paragraph e) applies: “the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.”

The rationale that leads us to legitimize the processing of data under the aforementioned legal basis is as follows: Recital (45) of the GDPR establishes that when processing is carried out to comply with a legal obligation applicable to the controller, or if it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority, the processing must have a basis in Union law or the law of the Member States.

The same assertion can be found in Preamble V of the LOPDGDD when it states that it can only be considered based on the performance of a task carried out in the public interest or in the exercise of

official authority vested in the controller, in the terms provided for in the European regulation, when it derives from a competence attributed by law; as well as in Article 8.2 of the same legal body, which establishes that the processing of personal data can only be considered based on the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, in the terms provided for in Article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.

Well, in light of the above, and being essential to refer to a norm with the rank of law, it is necessary to refer to Law 50/2002, of December 26, on Foundations, which in its Article 3.1 establishes that:

“Foundations must pursue purposes of general interest, such as, among others, the defense of human rights, victims of terrorism and violent acts, social assistance and social inclusion, civic, educational, cultural, scientific, sports, health, labor, institutional strengthening, cooperation for development, promotion of volunteering, promotion of social action, environmental protection, and promotion of the social economy, promotion and care for people at risk of exclusion for physical, social, or cultural reasons.”

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Promotion of constitutional values and defense of democratic principles, fostering tolerance, developing the information society, or scientific research and technological development.”

In short, given that the main objective of the GOODJOB FOUNDATION, as already indicated, is to promote vocational training for employment and lifelong learning to achieve labor and social integration of groups at risk of poverty and/or social exclusion, which include, among others, people with functional diversity and/or any type of disability, compliance is being given to the obligation and competence attributed to foundations under the provisions of their specific regulations, a fact that allows for the processing of personal data based on public interest.

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This party considers it necessary at this point to bring to attention the processing of personal data that takes place after the completion of the employability program.

Well, as previously stated, the GOODJOB FOUNDATION carries out employability programs so that, subsequently, its participants can be hired by ordinary companies, having previously been employed by one of the Special Employment Centers of social initiative of GOODJOB.

When a participant in an employability program is hired by a Special Employment Center of social initiative of GOODJOB (hereinafter, “CEEis”), it is also necessary for this CEEis to process special category data regarding the disability of the interested party. In this case, the legal basis that legitimizes the processing of this personal data is no longer the same, as argued below.

Firstly, it is again necessary to lift the prohibition on the processing of special category data with the concurrence of one of the circumstances of Article 9.2 of the GDPR. In this case, the processing of data regarding disability carried out by the CEEis finds its legitimacy in paragraphs b) and h) of the aforementioned provision:

“b) the processing is necessary for the fulfillment of obligations and the exercise of specific rights of the data controller or the interested party in the field of labor law and social security and protection, to the extent that it is authorized by the law of the Union of the Member States or a collective agreement under the law of the Member States that establishes adequate guarantees for the respect of fundamental rights and the interests of the interested party.”

Certain processing of special category data is mandatory for CEEis by their very nature. Furthermore, it is necessary for the effective fulfillment of the rights recognized for workers with disabilities in Royal Legislative Decree 1/2013, of November 29,

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which approves the Consolidated Text of the General Law on the Rights of Persons with Disabilities and their Social Inclusion.

“h) the processing is necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social assistance or treatment, or management of health and social care systems and services, based on Union law or the law of the Member States or under a contract with a health professional and without prejudice to the conditions and guarantees provided for in paragraph 3.”

This is in connection with the functions attributed to CEEIs and the services provided by them, which are part of the social assistance services under the legal framework.

Secondly, and after having lifted the previous prohibition, some of the legal bases provided for in Article 6.1 of the GDPR apply, specifically those set forth in paragraphs b), c), and e):

“b) the processing is necessary for the performance of a contract in which the interested party is a party or for the application at their request of pre-contractual measures.”

The personal data of the interested party is necessary to execute the contract that binds the parties in their special employment relationship.

“c) the processing is necessary for compliance with a legal obligation applicable to the data controller.”

The employment relationship that binds the CEEIs with the employee with a disability is regulated by Royal Decree 1368/1985, of July 17, which regulates the special employment relationship of persons with disabilities working in Special Employment Centers.

“e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.”

Due to the public interest mission carried out by CEEIs, specifically to integrate people with disabilities into the labor market. In this regard, the regulation that determines the functions and competencies of the CEE is Royal Legislative Decree 1/2013, of November 29, which approves the Consolidated Text of the General Law on the Rights of Persons with Disabilities and their Social Inclusion.

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The specially protected data requested for participation in the “IMPACT #include4 Employability Program” are the data related to disability, as it is an essential requirement for the participant to have such a condition to be included in the program.

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- Data related to disability may include, for example, the following:

- o Notification of resolution regarding the degree of disability.

- o Technical Advisory Report.

- o Disability card/resolution that contains the degree of disability.

- It should be noted that the GOODJOB FOUNDATION, for enrollment in an employability program, requests participants to certify their disability, but in no case is it expressly required that they submit the Technical Advisory Report as a mandatory requirement.

- The data provided by the participant to the GOODJOB FOUNDATION is data that they voluntarily submit, as is the case with the Claimant, who, to certify their status as a person with a disability, sent to the GOODJOB FOUNDATION, in addition to the disability card, the Technical Advisory Report.

The person from the GOODJOB FOUNDATION who was designated as the professional to carry out the follow-up of this participant, that is, the Claimant, is a job coach belonging to the Support Unit, professionally qualified for such a function. This person communicated via telephone the need to obtain their data related to their disability, and the Claimant, in addition to sending the disability card, voluntarily attached, without it being expressly required, the Technical Advisory Report.

- The following should be noted regarding the Technical Advisory Report:

The fact that the GOODJOB FOUNDATION has the aforementioned Technical Advisory Report will not

imply excessive data processing for two specific reasons.

The first reason is that public administrations from different autonomous communities may require such documentation for the granting of subsidies or aid, documentation that is necessary to certify the social work of the GOODJOB FOUNDATION; furthermore, it should be noted that once a participant completes the training process, they become an employee at one of GOODJOB's Special Employment Centers.

The Special Employment Centers of GOODJOB also apply for subsidies or aid offered by public administrations; in this sense, public administrations often require the submission of the aforementioned Technical Advisory Report.

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By way of example, in the Community of Madrid, the Special Employment Center applies for two subsidies, on one hand, for salary costs and, on the other hand, for support unit assistance. In this regard, there are explicit requirements from the Community of Madrid for the submission of the Technical Advisory Report for certain employees, as can be seen in the requests provided with this document as Annex II and III.

The second reason is to ensure that the interested party is indeed in a position to follow the specific employability program, that is, that their particular characteristics do not prevent them or pose any limitations that require specific support, not only for training but also for performing tasks in a future job, allowing for the detection of the interested party's adaptation needs to the employability program and the future job position, that is, to ensure that the interested party has sufficient support to be able to perform their work.

From the response to the request and the documentation accompanying it, the following points are observed:

As stated in Article 3 of the Statutes of the GOODJOB Foundation (a copy of the statutes obtained from the Foundation's website is provided in the following link to the URL

<https://www.fundaciongoodjob.org/la-fundacion/estatutos/>)

“The purposes of the Foundation are:

To promote Vocational Training for Employment and lifelong learning to achieve the labor and social integration of groups at risk of poverty and/or social exclusion, including:

Active population in long-term unemployment, people with functional diversity, youth, women victims of gender violence, refugees, drug addicts, victims of terrorism, people affected by HIV/AIDS, and any other group that requires training and support for their social, labor, and/or professional integration.

It will also be the purpose of the Foundation to create favorable work environments for the reception and integration of workers at risk of social exclusion, promoting equal opportunities between men and women, and helping to manage cultural and generational diversity.”

- The responding party provides as Annex I to the document a copy of its record of processing activities (hereinafter RAT).

- In this RAT, among other processing activities carried out by the responding party, there is the processing activity called “EMPLOYABILITY PROGRAMS.”

- In this RAT, only one purpose of processing those data is listed as “Management of the employability programs offered by the Organization” (responding party), processing special categories of data related to Health data (disability).

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To carry out this activity, the responding party processes the following categories of data:

- o Identifying data (NIF/DNI; Social Security Number/Mutuality; Name and surname; Health Card; Address; E-mail; Phone; Signature; Image/Voice; etc.).
- o Academic and professional data (education; qualifications; student history; professional experience; membership in professional colleges or associations).
- o Employment detail data (profession; job positions; non-economic payroll data; worker history).
- o Health-related data (Data related to disability based on the consent provided by the interested party, who is aware that the program is aimed at people with disabilities).
According to the responding party in its written response to the information request, "Data related to disability may include, for example, the following: - Notification of resolution regarding the degree of disability. - Technical Medical Report. - Disability card/resolution containing the degree of disability." Specifically, in the email titled "WELCOME TO INCLUDE" dated 08/10/2021, the responding party requested from the claimant "(...) If you have not already sent it, complete documentation related to the disability and the accreditation card for persons with disabilities" and "In case of having recognized Labor Incapacity, documentation related to it (not the part indicating the amount of the pension)."
- Stating as "Deadline for deletion" that "The data will be processed for the entire duration of the employability program or until the interested party expresses their wish to no longer participate in it, after which the data will be duly deleted. However, the obligation of blocking provided for in Article 32 of the LOPDGDD must be applied to the data during the maximum prescription period for infringements related to data protection, that is, 3 years (art. 72 LOPDGDD)."
- The responding party acknowledges that "for registration in an employability program, it requests participants to prove their disability," stating that "in no case is it expressly required that they submit the Technical Medical Report as mandatory."
- The responding party states that it was the claimant who, to prove their status as a person with a disability, voluntarily provided the responding party, in addition to the disability card, the Technical Medical Report, without any prior request from the responding party for the claimant to present the Technical Medical Report.
- The responding party then attempts to justify that, despite having the claimant's Technical Medical Report of disability, this does not constitute excessive data processing for two specific reasons:
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- o The first reason is that public administrations from different autonomous communities will be able to require such documentation for the granting of subsidies or aid, documentation that is necessary to certify the social work of the GOODJOB FOUNDATION; furthermore, it should be noted that once a participant completes the training process, they become an employee at one of GOODJOB's Special Employment Centers. The Special Employment Centers of GOODJOB also apply for subsidies or aid offered by public administrations; in this sense, public administrations often require the submission of the aforementioned Technical Advisory Report.
- o The second reason is to ensure that the interested party is indeed in a position to follow the specific employability program, that is, that their particular characteristics do not prevent them or imply any limitations that require specific support, not only for training but also to perform tasks in a future job,

allowing for the detection of the interested party's adaptation needs to the employability program and the future job position, that is, to ensure that the interested party has sufficient support to be able to perform their work.

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Annex II and III, which accompany the response to the information request, correspond to express requirements from the Community of Madrid for the Technical Advisory Report of certain employees as workers of the Special Employment Centers, not as students participating in the employability programs of the responding party (GOODJOB Foundation), as can be observed in the submitted requirements. The main purpose of the employability programs is for the individuals participating in them to acquire the technical and training skills that will allow their incorporation into the labor market, through Special Employment Centers and their subsequent incorporation into companies that collaborate with the Special Employment Centers.

CONCLUSIONS

- 1.- It has been demonstrated that the responding party processes special categories of data (data related to health: disability) in its employability programs.
- 2.- It has also been demonstrated that the responding party processed the health data of the claimant contained in the Technical Advisory Report provided by them.
- 3.- The responding party states that it does not require Technical Advisory Reports containing data related to medical diagnoses as a means of proving disability to participate in its employability programs; however, it states that some participants voluntarily provide them to prove their disability; and it understands that, despite not requiring them, it would be legitimized to use the data contained in those Reports to obtain aid from various public administrations and to transfer them to the Special Employment Centers so that they can hire participants in the employability programs of the responding party.

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SIGNIFICANT EVIDENCE FOR GRADUATION

Business volume or activity

This is a non-profit foundation (as stated in Article 1 of its statutes) whose main activity is of a social nature, specifically aimed at promoting vocational training for employment and lifelong learning to achieve the labor and social integration of groups at risk of poverty and/or social exclusion, including, among others, people with functional diversity and/or any type of disability (as stated in Article 3 of its statutes).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, according to the provisions of Article 4.1 of the GDPR, it is established that there is a processing of personal data, since GOODJOB collects, among others, the following personal data of

individuals: name, surname, address, and vehicle registration, understanding personal data as “any information relating to an identified or identifiable natural person.”

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or

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one or several elements characteristic of the physical, physiological, genetic, psychological, economic, cultural, or social identity of that person.

GOODJOB carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, which defines the “data controller” or “controller” as: “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.”

Furthermore, processing must be understood as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction.”

The fact that various documentation regarding the degree of disability is requested before joining an employability program is considered to be the collection of health data of the affected person, and its acquisition implies that health data processing operations are being carried out, in this case, the data that GOODJOB requested from the claimant, related to medical diagnosis or treatment.

Regarding health data, Recital 35 of the GDPR states:

“Personal data related to health must include all data related to the health status of the data subject that provides information about their past, present, or future physical or mental health. This includes information about the individual collected in connection with their registration for healthcare purposes, or in connection with the provision of such care, in accordance with Directive 2011/24/EU of the European Parliament and of the Council; any number, symbol, or data assigned to an individual that uniquely identifies them for healthcare purposes; information obtained from tests or examinations of a part of the body or a bodily substance, including that derived from genetic data and biological samples, and any information relating, for example, to an illness, a disability, the risk of suffering from diseases, medical history, clinical treatment, or the physiological or biomedical status of the data subject, regardless of its source, for example, a doctor or other healthcare professional, a hospital, a medical device, or an in vitro diagnostic test.”

“Health-related data” is defined as: “personal data related to the physical or mental health of a natural person, including the provision of healthcare services, which reveal information about their health status” (Article 4.15 GDPR).

Personal data related to health is considered special category data under the GDPR, as it is particularly sensitive in relation to fundamental rights and freedoms since the context of its processing could entail significant risks to fundamental rights and freedoms.

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Regarding health data, the general regime is indicated in Article 9 of the GDPR:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or

philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

(...)"

The use of health data is prohibited unless there is explicit consent from the affected individual or one of the circumstances in Article 9.2 b) and following of the GDPR applies. In this regard, in the case at hand, for the purpose of managing an employability program, in order to be hired by a Special Employment Center of social initiative, it is not permissible to request the "complete documentation regarding disability" in addition to the accreditation card for persons with disabilities of the participants in such employability programs.

Within the principles of processing provided in Article 5 of the GDPR, paragraph 1.c) guarantees the principle of data minimization.

III

Principle of Data Minimization

Article 5.1.c) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

For our constitutional jurisprudence, if the right to privacy acts as a barrier against interference or intrusion by others (STC 142/1993, of 22/04), the right to data protection "consists of a power of disposition and control over personal data" (SSTC 290 and 292/2000, of 30/11); if the right to privacy prohibits third parties from knowing certain aspects of the person (intimate aspects or those related to their private and family life), the right to data protection provides guarantees of disposition and control regarding personal data that may or may not belong to the sphere of intimacy and that may be subject to knowledge and handling by others; if the right to privacy is a right of abstention by others regarding our personal sphere, the right to data protection primarily implies self-determination over our data.

In this case, the Technical Advisory Opinion (hereinafter, DTF) aims for the interested party to know the data that have been taken into account to qualify their degree of disability, but, unlike the Resolution and the Disability Certificate, the DTF is not a document that can be required to justify their disability situation. Thus, Article 2 of Decree 1414/2006, of December 1, which determines the consideration of a person with a disability for the purposes of Law 51/2003, of December 2, on Equal Opportunities, Non-Discrimination and Universal Accessibility for Persons with Disabilities, provides in its Article 2:

"Article 2. Accreditation of the degree of disability.

1. For the purposes of the provisions of Law 51/2003, of December 2, a degree of disability equal to 33 percent shall be accredited by the following documents:

a) Resolution or certificate issued by the Institute of Older Persons and Social Services (IMSERSO) or the competent body of the corresponding Autonomous Community.

b) Resolution of the National Institute of Social Security (INSS) recognizing the status of pensioner due to total, absolute, or severe permanent disability.

c) Resolution of the Ministry of Economy and Finance or the Ministry of Defense recognizing a retirement or pension for permanent incapacity for service or disability."

In the email sent from GOODJOB dated October 8, 2021, the claimant is requested: "complete documentation regarding disability and accreditation card for persons with disabilities." This led the claimant to send GOODJOB not only the accreditation card for the Degree of Disability but also the complete DTF.

According to GOODJOB's response to the information request made by this Agency, the fact that it has the DTF will not imply excessive data processing for two specific reasons.

The first reason is that public administrations of the different autonomous communities will be able to require such documentation for the granting of subsidies or aid, documentation that is necessary to certify the social work of GOODJOB; but furthermore, it should be noted that once a participant

completes the training process, they become an employee in one of GOODJOB's Special Employment Centers.

However, the fact that a Public Administration “will be able to require” documentation regarding personal data, the processing of which is, in principle, prohibited, does not authorize GOODJOB to collect the DTF at any time.

It is worth mentioning the considerations regarding the principle of data minimization made by the European Data Protection Committee (EDPC), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), adopted on October 20, 2020, Guidelines 4/2019 on Article 25 Data Protection by Design and by Default ([https://edpb.europa.eu/system/files/2021-](https://edpb.europa.eu/system/files/2021-16/23)

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04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_en.pdf).

In section 76 of these guidelines, it is established that

“Essential elements from the design and by default regarding data minimization may include the following:

- Avoidance of data: All processing of personal data will be avoided when possible to fulfill the relevant purpose.

- Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.

(...)

- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.

- Necessity: Each category of personal data will be necessary for the specified purposes and should only be processed if it is not possible to achieve the purpose by other means.”

From the application of these characteristics of the principle of data minimization, it follows that the collection of data cannot be justified in the case that it may be necessary at an indeterminate time in the future; that is, participants in GOODJOB's employability programs cannot be asked for personal data that is not necessary at the time of collection, nor is pertinent to the processing in question, and must be limited to what is necessary for training and subsequent hiring. Consequently, personal data cannot be collected without there being a cause that enables the data controller at the time it occurs. The second reason alleged by GOODJOB is to ensure that the interested party is effectively in a position to follow the specific employability program; that is, that their particular characteristics do not prevent them or imply any limitation that requires specific support, not only to be trained but also to perform tasks in a job position in the future, allowing for the detection of the interested party's adaptation needs to the employability program and the future job position, that is, to ensure that the interested party has sufficient support to be able to perform their job.”

For the fulfillment of these purposes, the DTF is not the document established by the legal system to certify the degree of disability. The valid documents to certify the degree of disability are collected in Article 2 of Royal Decree 1414/2006, of December 1, previously transcribed.

Furthermore, the DTF collects a series of health data from the patient that have been taken into account to qualify their degree of disability, which have no utility in determining the compatibility of the worker's capabilities with the performance of the tasks of the job position for which they have been or will be hired, since, for example, individuals with the same health problem do not constitute a homogeneous group and may have different capabilities, existing other types of reports more suitable for understanding that compatibility.

Article 38 of Royal Legislative Decree 1/2013, of November 29, which approves the Consolidated Text of the General Law on the Rights of Persons with

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disability and its social inclusion, under the title “Guidance, placement, and registration of workers with

disabilities for their labor inclusion,” in its section 3 establishes that: “To ensure the effective application of the provisions set forth in the two preceding sections and to achieve the alignment between the personal conditions of the person with a disability and the characteristics of the job position, regulatory coordination will be established between public employment services and duly authorized placement agencies and the multiprofessional teams for qualification and recognition of the degree of disability provided for in this law. Currently, some autonomous communities issue Certificates of Capabilities or Reports of Aptitudes as an alternative for assessing the compatibility of the worker's capabilities with the performance of the tasks of the job for which they are to be hired. For all these reasons, the request for “complete documentation related to disability and accreditation card for persons with disabilities” that GOODJOB made to the claimant cannot be considered adequate, relevant, and limited to what is necessary concerning the purposes for which the data contained in such documentation are processed.

IV

Classification and qualification of the infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that GOODJOB collects health data from individuals, specifically, “complete documentation related to disability,” without the data contained in such documentation being adequate, relevant, and limited to what is necessary concerning the purposes for which they are processed.

The known facts could constitute an infringement, attributable to GOODJOB, classified in Article 5.1.c) of the GDPR, which stipulates the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;” For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

“1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years:

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a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

Proposal for sanction

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to graduate the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR:

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

“a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered;

b) the intentionality or negligence in the infringement;

- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In accordance with the evidence currently available in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

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VI

Adoption of measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”, in the resolution adopted, GOODJOB may be required to demonstrate to this Agency within 90 days the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure:

- Adjust the collection of personal data related to the health of individuals using their services to those that are strictly necessary for the fulfillment of their purposes, modifying the form that requires “complete documentation” regarding the disability of participants in employability programs.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the opening of a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against FUNDACIÓN GOODJOB, with NIF G87193330, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by

the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 2,000.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to FUNDACIÓN GOODJOB, with NIF G87193330, granting it a hearing period of ten working days to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), it must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the

LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On January 11, 2024, the respondent has proceeded to pay the sanction in the amount of 1,200 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), it is competent to

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to initiate and resolve this procedure the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the second has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which

shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213389, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER FUNDACIÓN GOODJOB to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 90 days from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to FUNDACIÓN GOODJOB.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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